

FEDERAL MARITIME COMMISSION

DOCKET NO. 12-10

SBI INTERNATIONAL, INC.

v.

MR. HOWARD FINKEL c/o COSCO CONTAINER LINES AMERICAS

ORDER GRANTING MOTION FOR VOLUNTARY DISMISSAL

On November 21, 2012, complainant SBI International, Inc. (SBI), represented by its president Ronald Penn, commenced this proceeding by filing a Complaint with the Secretary. SBI's Second Amended Complaint filed May 13, 2013, *see SBI International, Inc. v. Mr. Howard Finkel c/o COSCO Container Lines Americas*, FMC No. 12-10 (ALJ May 1, 2013) (Order to File Second Amended Complaint), makes two separate and distinct claims. The first claim concerned the shipment from the United States to China of four refrigerated containers of chicken parts. Since the containers had been delivered by the time the parties had a telephonic status conference, SBI withdrew this claim. The second claim concerned Cosco's refusal to enter into a new service contract with SBI. Briefly stated, SBI contended that this constituted a refusal to deal or negotiate in violation of the Shipping Act. *See SBI International, Inc. v. Mr. Howard Finkel c/o COSCO Container Lines Americas*, FMC No. 12-10 (ALJ Sept. 30, 2013) (Schedule for Discovery and Briefs). An order scheduling discovery and the filing of briefs was entered. *Id.*

On November 18, 2013, SBI filed a motion for voluntary dismissal without prejudice. SBI states:

[WHEREAS] the . . . containers were eventually delivered months late by Cosco Lines to the recipient after months of informal negotiations, the Petitioner states that due to the fact that the Respondent answered the complaint . . . with negative and misinformation and that there may be negative repercussions due to loss of business and productivity and/or [Penn] may suffer from undo stress in the future,

the Petitioner, SBI, now comes and respectfully files this Notice of Voluntary Dismissal, Without Prejudice.

(Motion for Voluntary Dismissal Without Prejudice.)

Commission Rule 72 provides:

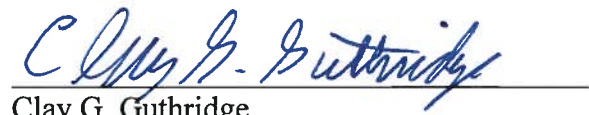
(a) *Voluntary dismissal.* (1) By the complainant. The complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision; or a stipulation of dismissal signed by all parties who have appeared. Unless the notice or stipulation states otherwise, the dismissal is without prejudice. (2) *By order of the presiding officer.* Except as provided in paragraph (a)(1) of this section, an action may be dismissed at the complainant's request only by order of the presiding officer or the Commission, on terms the presiding officer considers proper. If a respondent has pleaded a counterclaim before being served with the complainant's motion to dismiss, the action may be dismissed over the respondent's objection only if the counterclaim can remain pending for independent adjudication. Unless the order states otherwise, a dismissal under this paragraph is without prejudice.

46 C.F.R. § 502.72(a). Respondents have filed an answer; therefore, Rule 72(a)(1) is inapplicable.

SBI served the motion for voluntary dismissal on November 15, 2013. A motion to dismiss is a dispositive motion. 46 C.F.R. § 502.69(g). Respondents have not filed a counterclaim and have not filed an opposition to the motion to dismiss. *See* 46 C.F.R. § 502.70(b) ("response to a dispositive motion must be served and filed within 15 days after the date of service of the motion").

Upon consideration of the Motion for Voluntary Dismissal Without Prejudice and the record herein, I find that it is proper to dismiss this proceeding without prejudice. Therefore, it is hereby

ORDERED that the Motion for Voluntary Dismissal Without Prejudice be **GRANTED** and this proceeding be **DISMISSED** without prejudice.


Clay G. Guthridge
Administrative Law Judge